

REVENUE MEMORANDUM ORDER NO. 1-2025 issued on January 3, 2025 prescribes the processing of request for documents from Securities and Exchange Commission (SEC) in relation to the Memorandum of Agreement (MOA) and Data Sharing Agreement (DSA) between the Bureau of Internal Revenue (BIR) and SEC.

All requests for SEC documents shall be limited to taxpayers for whom Letters of Authority have been issued and taxpayers with delinquent accounts, which shall be covered by a Request Form approved by the Head of the requesting office. The SEC documents to be requested are as follows:

- Articles of Incorporation and By Laws
- General Information Sheets
- Audited Financial Statements

The requesting offices shall appoint a “Point Person” responsible in the preparation of the consolidated requests of Revenue Officers (ROs), submission of requests to Audit Information, Tax Exemption and Incentives Division (AITEID), maintenance of database of all requests and soft copies of requested documents and dissemination of the provided documents to the requesting ROs.

Each request shall have a Reference Control No. assigned by the point person immediately upon receipt of the requests, which shall contain the year of filing of the request and shall be numbered sequentially following the order of receipt of the requests, with sample format:

RR1-CD-SEC2024-00001
RR1-RID-SEC2024-00001
RR5-RDO27-SEC2024-00001
LTS-RLTAD1-SEC2024-00001
NO-ARMD-SEC2024-00001
NO-NID-SEC2024-00001

An excel database to monitor all requests using the SEC SCORE Protocol and update all requests approved and acted upon by SEC shall be maintained by both the Requesting Office and Processing Office with information as follows:

- a. Requesting Office (RR/RDO/AD)
- b. Date of Request
- c. Taxable Year
- d. Name of Taxpayer
- e. TIN
- f. SEC Registration
- g. Purpose
- h. LA# (if to be used for investigation)
- i. FAN# and amount (if for collection information)
- j. SEC Documents requested

k. Date Requested Documents were provided

The consolidated request in excel file shall also be sent to the processing office, together with the scanned approved individual requests from ROs. The documents that may be requested for a day shall be limited to 100 documents per day regardless of the type of document.

The requested documents shall be provided in a multi-page digital image format through the portal within twenty-four (24) business hours equivalent to three (3) working days from the date of request. These can then be viewed and downloaded by the authorized BIR users of the Processing Office through the portal. Receiving status and date and time stamp of receiving and the submitting personality can also be made available.

All concerned offices under the Information Systems Group (ISG) shall provide adequate support to the processing office to ensure the proper access, storage and dissemination of data/information to the concerned offices.

All data obtained using the SEC SCORE Protocol shall be considered strictly confidential and shall be utilized exclusively for internal revenue tax purposes. The heads of concerned offices shall be responsible for all the SEC data obtained and disseminated to their respective offices and the same shall not be divulged to any unauthorized personnel within and outside the Bureau.

The improper use of data obtained from SEC Documents shall be a ground for the imposition of administrative sanctions against the erring Revenue Officers.